

24NNCV03632 24NNCV03632

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-04

Motion: NOWHERE STUDIO CITY, LLC'S MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO SECOND SET OF REQUESTS FOR PRODUCTION

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Case Number: 24NNCV03632 Hearing Date: August 4, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

MARY CAROLINE
CRUZ,

Plaintiff(s),

vs.

EREWHON,
et al.,

Defendant(s).

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CASE NO.: 24NNCV03632

[TENTATIVE]

ORDER RE: NOWHERE STUDIO CITY, LLC'S MOTION TO COMPEL PLAINTIFF'S
FURTHER RESPONSES TO SECOND SET OF REQUESTS FOR PRODUCTION

Dept.

3

8:30

a.m.

July 29,

2026

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Defendant Nowhere Studio City, LLC

("Defendant") moves for an order compelling further responses to its Second Set of Requests for Production, Set Two, Nos. 23, 24, and 27 through 35 from plaintiff Mary Caroline Cruz ("Plaintiff"). Defendant also requests the Court impose sanctions in the amount of \$1,940 against Plaintiff and her counsel. On July 22, 2026, Defendant filed a reply brief/notice of non-opposition stating that Plaintiff served further responses on June 19, 2026, and further responses are still required as to RFP Nos. 28 through 31, and 33 through 35.

RFP No. 28: Defendant seeks Plaintiff's

personal tax returns for the two years prior to the Incident through the present day. Plaintiff asserts her constitutional right to privacy and states that the request seeks financial or other confidential and business proprietary information.

"[I]ndividuals have a legally

recognized privacy interest in their personal financial information." (International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Superior Court (2007) 42 Cal.4th 319, 330.) Privacy interests prevail absent any showing that the information sought is directly relevant, a compelling need for the information, and that alternative sources are unavailable. (Ombudsman Services of No. Cal. v. Superior Court (2007) 154 Cal.App.4th 1233, 1251, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

Here, Defendant states in its separate

statement that responsive documents must be produced and argues in its moving papers that her personal tax returns are relevant to proving lost wages and loss of earning capacity. However, Defendant does not show that it cannot obtain information about Plaintiff's wages and earnings from alternative sources. Accordingly, the motion to compel a further response to RFP No. 28 is DENIED.

RFP Nos. 29-31, 33-35: Defendant seeks

financial information about Open Heart Warriors ("OHW"), a company Plaintiff co-manages, including tax returns, tax forms, financial statements, purchase orders, invoices, and sales orders. Plaintiff initially only asserted objections but later added that she has not located any responsive documents. Plaintiff disclaims possession of any documents and instead refers Defendant to OHW itself, OHW's other co-manager, Logan Voxx, and various unidentified professionals including "a tax preparer, accountant, bookkeeper, or other tax custodian."

Notably, Plaintiff did not assert the

taxpayer's privilege on behalf of OHW, but only objected on the general grounds that the requests sought financial and confidential information violating the constitutional right to privacy. However, corporations do not have a constitutional right to privacy and the failure to timely invoke the tax privilege specifically results in its waiver. (SCC Acquisitions, Inc. v.

Superior Court (2015) 243 Cal.App.4th 741, 756; Code Civ. Proc., § 2031.240, (b).).)

Plaintiff also objects on the grounds that production of the requested documents would violate the privacy rights of third parties. OHW has a right to privacy even if it is not a constitutional right; it is simply a "lesser right than that held by human beings and is not considered a fundamental right." (SSC Acquisitions, supra, 243 Cal.App.4th at p. 756.) In assessing whether a document request infringes on the right to privacy, the discovery's relevance and whether it appears reasonably calculated to lead to the discovery of admissible evidence is balanced against the corporate right to privacy. (Ibid.) Here, OHW's financial information is relevant to Plaintiff's claims of lost wages and loss of earning capacity. Accordingly, the objection based on privacy is overruled.

Last, the Court rules that Plaintiff's statements of her inability to comply with the document requests are deficient. Plaintiff states that the documents are not within her possession, custody, or control, but fails to state the name along with the address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) While Plaintiff identifies Logan Voxx, "Shopify/Shopify payments" and OHW, Plaintiff does not provide their address; similarly, Plaintiff does not identify any tax preparer, accountant, bookkeeper, "applicable financial institution" or vendors which might be in possession of the requested documents.

Accordingly, a further response is required for RFP Nos. 29 through 31, and 33 through 35.

In conclusion, Defendant's motion to compel is GRANTED in part with respect to RFP Nos. 29-31 and 33-35. The motion is DENIED with respect to RFP No. 28. Sanctions are imposed upon Plaintiff and counsel of record, jointly and severally, in the reduced amount of \$705, consisting of 3 hours at defense counsel's hourly rate of \$235 and a \$60 filing fee.

Dated this 29th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.